

**U.S. DISTRICT COURT**  
**U.S. District Court, Western District of New York (Rochester)**  
**CIVIL DOCKET FOR CASE #: 6:26-cv-06015-EAW**

Moszkowski v. Rumsey et al  
Assigned to: Hon. Elizabeth A. Wolford  
Cause: 28:1332 Diversity-Racketeering (RICO) Act

Date Filed: 01/06/2026  
Jury Demand: None  
Nature of Suit: 470 Racketeer/Corrupt Organization  
Jurisdiction: Diversity

**Plaintiff**

**Marc M. Moszkowski**

represented by **Marc M. Moszkowski**  
Le Verdos  
83300 Chateaudouble  
France  
251-300-4820  
PRO SE

V.

**Defendant**

**David L. Rumsey, Esq.**

**Defendant**

**Rustin R. Howard**

**Defendant**

**DeepGulf, Inc.**

**Defendant**

**John Does 1-10**

| Date Filed | #                        | Docket Text                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
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| 01/06/2026 | <a href="#"><u>1</u></a> | COMPLAINT against DeepGulf, Inc., John Does 1-10, Rustin R. Howard, David L. Rumsey, Esq, filed by Marc M. Moszkowski. (Attachments: # <a href="#"><u>1</u></a> Civil Cover Sheet, # <a href="#"><u>2</u></a> Letter) (JHF) (Entered: 01/06/2026)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| 01/06/2026 |                          | Notice of Availability of Magistrate Judge: A United States Magistrate of this Court is available to conduct all proceedings in this civil action in accordance with 28 U.S.C. 636c and FRCP 73. The Notice, Consent, and Reference of a Civil Action to a Magistrate Judge form (AO-85) is available for download at <a href="http://www.uscourts.gov/services-forms/forms">http://www.uscourts.gov/services-forms/forms</a> . (JHF) (Entered: 01/06/2026)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| 01/06/2026 |                          | <p>AUTOMATIC REFERRAL TO MEDIATION: Pursuant to Section 2.1(A) of the Plan for Alternative Dispute Resolution in the United States District Court for the Western District of New York (the ADR Plan), this case is automatically referred to ADR. To access the ADR Plan and for inquiries regarding the Court's ADR Program please review the Court's <a href="#">ADR webpage</a> and/or contact the Court's ADR Administrator at <a href="mailto:adrprogram@nywd.uscourts.gov">adrprogram@nywd.uscourts.gov</a>.</p> <p>Prior to the Local Rule 16 scheduling conference, counsel and unrepresented parties shall review the <a href="#">ADR Plan</a> and confer with each other regarding ADR for this case. Unless the parties agree to a different intervention, it is presumed they will participate in mediation. The parties shall be prepared to report on the outcome of their ADR discussion at the scheduling conference, as the initial Scheduling Order for this case will establish ADR deadlines in accordance with the ADR Plan. (JHF) (Entered: 01/06/2026)</p> |
| 01/06/2026 |                          | Pro Se Packet consisting of Privacy Notice, Consent to Proceed Before a Magistrate Judge, Pro Se Assistance Program, Civil Case Timeline and ADR Notification mailed to plaintiff. (JHF) (Entered: 01/06/2026)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| 01/14/2026 | <a href="#"><u>2</u></a> | ORDER administratively terminating the action. If Plaintiff wishes to reopen this action, he shall pay the filing fees of \$405.00, or notify the Court in writing as directed no latter than 30 days from the date of this order. Clerk directed to send to Plaintiff a form motion to proceed in forma pauperis. Signed by Hon. Elizabeth A. Wolford on 1/14/26. (JHF) (Entered: 01/14/2026)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| 01/14/2026 | <a href="#"><u>3</u></a> | JUDGMENT administratively terminating the action. Signed by Clerk on 1/14/26. (JHF) (Entered: 01/14/2026)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 01/14/2026 |                          | Clerk mailed copy of <a href="#"><u>2</u></a> Order, <a href="#"><u>3</u></a> Judgment and a form motion to proceed in forma pauperis to plaintiff. (JHF) (Entered: 01/14/2026)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |

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| 01/15/2026 | <a href="#"><u>4</u></a> | MOTION for Leave to Proceed in forma pauperis by Marc M. Moszkowski. (JHF) (Entered: 01/15/2026)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| 01/15/2026 | <a href="#"><u>5</u></a> | MOTION for Electronic Filing Privileges by <i>pro se</i> party by Marc M. Moszkowski. (JHF) (Entered: 01/15/2026)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| 03/26/2026 | <a href="#"><u>6</u></a> | STATUS REQUEST by Marc M. Moszkowski. (RE) (Entered: 03/26/2026)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| 08/03/2026 | <a href="#"><u>7</u></a> | MOTION for Immediate Ruling by Marc M. Moszkowski. (JHF) (Entered: 08/03/2026)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| 08/10/2026 | <a href="#"><u>8</u></a> | <p>ORDER denying 4 Motion for Leave to Proceed in forma pauperis; denying 5 Motion for Electronic Filing Privileges; denying 7 Motion. If Plaintiff wishes to proceed without prepayment of fees, he must submit an amended motion establishing that he qualifies to proceed IFP no later than 30 days from the date of this Order or Plaintiff may proceed by paying the \$405 filing fee to the Clerk of Court of the Western District of New York no later than 30 days from the date of this Order. If Plaintiff does not submit an amended IFP motion or remit the filing fee by thirty days from the date of this Order, this action will be dismissed without prejudice, and the Clerk of Court shall close this case without further order of the Court. Signed by Hon. Elizabeth A. Wolford on 8/10/2026. (DMK)</p> <p>This Order and a blank form motion to proceed IFP was mailed to: Marc M. Moszkowski. (Entered: 08/10/2026)</p> |